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Case Number: 26AVCV00650 Hearing Date: August 27, 2026 Dept: A15

INIGUEZ v. TARZANA TREATMENT CENTERS, INC. et al.

Defendant

Tarzana Treatment Centers, Inc.'s Motion to Compel Arbitration

Defendant Tarzana Treatment Centers, Inc.

(TTC) moves to compel arbitration of claims asserted by Melissa Iniguez (Plaintiff). The Court's tentative ruling is as follows.

TENTATIVE DISPOSITION

1. Plaintiff's evidentiary objections to the

Declaration of Albert Senella and exhibit A are ruled on as follows: Objections Nos. 1 through 4 are sustained. Objection No. 5 is overruled. Objection No. 6 is sustained to the extent TTC offers exhibit A to prove that Plaintiff actually reviewed or subjectively understood its terms, received a copy, or did not revoke it; it is otherwise overruled.

2. Defendant Tarzana Treatment Centers, Inc.'s

motion to compel arbitration is granted. Plaintiff Melissa Iniguez and Tarzana Treatment Centers, Inc. shall proceed to binding arbitration of all claims Plaintiff asserts against Tarzana Treatment Centers, Inc. in this action under the arbitration agreement dated May 6, 2025.

3. Plaintiff's alternative request for an

evidentiary hearing and related discovery and production is denied.

4. No claim against Defendant Jane Doe is

referred to arbitration.

5. The entire action, including the claims against Jane Doe, is stayed under Code of Civil Procedure sections 1281.2 and 1281.4 pending completion of the arbitration between Plaintiff and Tarzana Treatment Centers, Inc.

6. Plaintiff's request to condition arbitration on Tarzana Treatment Centers, Inc.'s payment of any private-forum or arbitrator fees exceeding civil-court filing fees is denied without prejudice to a later application supported by evidence of the charges and Plaintiff's financial circumstances.

7. No attorney fees or costs are awarded on this motion.

8. The case management conference set for August 31, 2026, is vacated. A nonappearance arbitration status review is set for February 26, 2027, at 8:30 a.m. in Department A15. Plaintiff and Tarzana Treatment Centers, Inc. shall file a joint status report no later than February 19, 2027.

9. Tarzana Treatment Centers, Inc. shall give notice.

REASONS

BACKGROUND

Plaintiff Melissa Iniguez filed this action on May 1, 2026. She alleges that another patient, Defendant Jane Doe, assaulted her at Tarzana Treatment Centers, Inc.'s (TTC) rehabilitation treatment center on May 14, 2025, and that TTC failed to provide adequate supervision, security, or intervention. Plaintiff asserts intentional tort claims against Jane Doe and negligence based claims against TTC; the general negligence claim is pleaded against all defendants. (Compl. ¶¶ 8, 12-39, 41-46, 48-62, 64-68.)

TTC filed this motion and supporting declarations on July 31, 2026. Plaintiff filed an opposition, evidentiary objections, and her declaration on August 14, 2026. TTC filed its

reply on August 20, 2026.

TTC relies on a two page document titled "Arbitration Agreement Between Patient & TTC." The document states that signing is not a condition of admission or treatment. The agreement's article 1 addresses medical malpractice disputes. Its article 2 covers "all other claims or controversies" between the patient and TTC, "whether in tort, contract or otherwise," except disputes relating to collections or evictions. Its article 4 selects a retired superior court judge, requires each party to pay its own costs and a pro rata share of the arbitrator's fees except as law permits, and contains a prevailing party provision for a petition brought after a party fails to comply with a valid arbitration demand. (Senella Decl., Ex. A, arts. 1–7.)

LEGAL STANDARD

On a petition alleging a written agreement to arbitrate, the Court must order arbitration if it determines that an agreement exists, unless a statutory ground for denying the petition is established. (Code Civ. Proc., § 1281.2.) The moving party bears the burden of proving the agreement by a preponderance of the evidence, and the opposing party bears the burden of proving facts necessary to any defense. (*Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*).)

The burden of production proceeds in three steps. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 754–755 (*Iyere*).) TTC first must produce prima facie evidence of a written agreement. It may do so by filing a copy of an agreement purporting to bear Plaintiff's signature; at that stage, normal authentication is not required. (Cal. Rules of Court, rule 3.1330; *Iyere*, supra, 87 Cal.App.5th at p. 755.) Plaintiff then must produce admissible evidence creating a factual dispute as to the agreement's existence. (*Iyere*, supra, 87 Cal.App.5th at p. 755.) Only if Plaintiff does so does the burden of production shift back to TTC, which must then establish the agreement with admissible evidence. (*Ibid.*) The ultimate burden of persuasion remains with TTC. (*Rosenthal*, supra, 14 Cal.4th at p. 413.)

A motion to compel arbitration is decided in a summary proceeding. The facts ordinarily are proved by declarations and documentary evidence, with oral testimony received in the

Court's discretion. (Code Civ. Proc., §§ 1290.2, 2009; Rosenthal, *supra*, 14 Cal.4th at pp. 413–414.) The summary procedure does not relax evidentiary requirements when admissible evidence is required to resolve a factual dispute. (See *Chambers v. Crown Asset Management, LLC* (2021) 71 Cal.App.5th 583, 591–593.)

Unconscionability requires

both procedural and substantive unconscionability, although they need not exist to the same degree. (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 910.) The more substantively oppressive the term, the less procedural unfairness is required, and vice versa. (*Ibid.*)

DISCUSSION

A. Evidentiary objections

Objections Nos. 1 through

4 are sustained. Senella's title and generalized assertion of personal knowledge do not establish how he knows Plaintiff's admission date, how he obtained exhibit A or knows it is a true copy, whether he observed Plaintiff review or sign it, or the basis for his assertion that Plaintiff did not revoke it. The Court does not rely on those assertions. (Evid. Code, § 702; see *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 168–170 (*Gamboa*).)

Objection No. 5 is

overruled. TTC filed with its motion a copy of an agreement purporting to bear Plaintiff's apparent handwritten mark on the patient signature line. Under California Rules of Court, rule 3.1330 and *Iyere*, the copy satisfies TTC's initial production burden without ordinary authentication. (*Iyere*, *supra*, 87 Cal.App.5th at pp. 754–755.) As explained below, Plaintiff did not produce evidence sufficient to shift the burden of production back to TTC. The Court does not rely on Senella's challenged assertions to attribute the patient line mark to Plaintiff.

Objection No. 6 is

sustained to the extent TTC offers exhibit A to prove that Plaintiff actually reviewed or subjectively understood its terms, received a copy, or did not revoke it. The objection is otherwise overruled. The agreement's terms are

operative facts rather than hearsay when offered to establish the legal rights TTC seeks to enforce. (*Jazayeri v. Mao* (2009) 174 Cal.App.4th 301, 316.) The objective significance of the patient line mark is addressed below.

B.

Formation and request for an evidentiary hearing

TTC carried its initial production burden by filing a copy of the agreement purporting to bear Plaintiff's apparent handwritten mark on the line labeled "Patient's Signature," dated May 6, 2025, at 10:43 a.m. (*Senella Decl.*, Ex. A; Cal. Rules of Court, rule 3.1330; *Iyere*, supra, 87 Cal.App.5th at pp. 754–755.) The Court does not rely on *Senella's* assertions that exhibit A is a true copy, that Plaintiff reviewed and signed it, or that Plaintiff did not revoke it.

Plaintiff declares that, because of her condition at intake, she does not remember signing the agreement. After reviewing the filed copy, she is "not confident" that the patient line mark is her signature or initials and "cannot verify" that it is hers. She does not state that she did not make the mark, that the mark is not hers, or that it was forged. (*Iniguez Decl.* ¶ 4.)

Plaintiff relies on *Gamboa*, supra, 72 Cal.App.5th 158, which held that an employee's declaration that she did not recall the handwritten agreement was sufficient to challenge its authenticity. (*Id.* at pp. 167–168.) *Iyere* expressly disagreed with *Gamboa* as to apparent handwritten signatures, holding that an inability to recall, without denying that the signature is genuine or asserting forgery, does not create a factual dispute. (*Iyere*, supra, 87 Cal.App.5th at pp. 756–758.) *Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821 (*Ramirez*) recognized the split and followed *Iyere*. (*Id.* at p. 835.) The Court finds the reasoning of *Iyere* and *Ramirez* more persuasive and follows those decisions.

Plaintiff argues that *Iyere* is distinguishable because the mark is not a conventional signature. On the face of the filed copy, however, the mark is handwritten and appears on the line expressly labeled "Patient's Signature"; Plaintiff herself describes it as a possible "signature or initials." A signature need not consist of a person's

full handwritten name; initials may qualify when placed with the intent to authenticate a document. (Poag v. Winston (1987) 195 Cal.App.3d 1161, 1179.) Plaintiff does not disavow the mark. Under Iyere and Ramirez, her lack of recollection, lack of confidence, and inability to verify the handwritten mark do not create a factual dispute that shifts the burden of production back to TTC. (Iyere, supra, 87 Cal.App.5th at p. 758; Ramirez, supra, 102 Cal.App.5th at p. 835.) TTC therefore was not required to provide additional authentication evidence. Because TTC's prima facie showing stands un rebutted, TTC has proved the agreement's existence by a preponderance of the evidence.

Plaintiff's remaining testimony concerns whether the agreement was separately presented or explained and whether she subjectively understood it. (Iniguez Decl. ¶¶ 2–3, 5–7.) The Court considers that evidence in evaluating procedural unconscionability, but it does not create a factual dispute about objective assent. Because the written record presents no material factual conflict requiring credibility resolution, Plaintiff has not shown a need for testimony, discovery, or additional production before the motion is decided. Her alternative request is denied.

C. Scope and parties

The agreement's article 4 assigns to the arbitrator any dispute whether a claim is subject to arbitration. That claim level language does not clearly and unmistakably delegate formation, enforceability, or unconscionability, which the Court therefore decides. (Wright v. WellQuest Elk Grove, LLC (2026) 119 Cal.App.5th 267, 276-277.) The Court does not finally decide any pure claim level scope dispute. The agreement's article 2, however, facially reaches all claims between Plaintiff and TTC in tort, contract, or otherwise, and Plaintiff's claims against TTC arise from TTC's alleged failure to supervise, protect, and respond to the asserted assault. Plaintiff and TTC shall proceed to arbitration, where the arbitrator may resolve any remaining claim level scope question.

The agreement is between Plaintiff and TTC. Nothing in the record shows that Jane Doe agreed to arbitrate, and no party advances a doctrine under which she could enforce or be

bound by the agreement. The order compelling arbitration therefore extends only to Plaintiff's claims against TTC.

D. Statutory

safe harbor and unconscionability

TTC invokes Code of Civil

Procedure section 1295. A party seeking the conclusive effect of that statute's subdivision (e) bears the burden of proving that it is a qualifying health care provider under subdivision (g)(1). (Swain v. LaserAway Medical Group, Inc. (2020) 57 Cal.App.5th 59, 76 (Swain).)

TTC offered no evidence

establishing qualifying licensure or certification. It therefore has not established the predicate applicability of Code of Civil Procedure section 1295 or entitlement to subdivision (e)'s safe harbor. The Court evaluates enforceability under generally applicable unconscionability principles.

There is a modest degree

of procedural unconscionability. The agreement is a standardized form presented during treatment intake. Plaintiff declares that her condition affected her memory, concentration, and ability to understand lengthy intake documents. She does not remember the form being separately presented or identified, and no one told her that signing was optional. She further states that, if she made the mark, no one explained the jury waiver or article 2. (Iniguez Decl. ¶¶ 2-7.) On the other hand, the two page document is titled as an arbitration agreement, states at its outset that signing is not a condition of admission or treatment, repeats that point in article 6, and sets out the covered claims in numbered provisions. The record contains no evidence that Plaintiff lacked contractual capacity, was pressured, or was denied review. These features limit both oppression and surprise.

On the theories and record

presented, Plaintiff has not shown substantive unconscionability. The agreement's article 4 cost allocation is bilateral. It requires each side to pay its own costs and a pro rata share of the arbitrator's fees, "except as otherwise permitted by law," and permits a financial hardship request. The reference to Code of Civil Procedure section 1284.3 does not itself create an arbitrator fee waiver: the statute requires a private arbitration company to waive qualifying consumer fees and costs but expressly excludes arbitrator

fees. (Code Civ. Proc., § 1284.3, subd. (b)(1).) The cross reference does not make the term one sided, and the broader savings language preserves relief otherwise permitted by law.

Plaintiff states that she cannot afford a pro rata share of a retired judge's fees. (Iniguez Decl. ¶ 8.) She provides no evidence of income, assets, expenses, fee waiver status, arbitrator rates, or the likely total charge. That showing differs materially from the concrete evidence of unaffordable, high-cost arbitration considered in *Swain*, supra, 57 Cal.App.5th at page 74. The present record does not establish that the cost term is unduly harsh or that arbitration will be inaccessible. The request to require TTC to pay any private forum or arbitrator fees exceeding civil court filing fees is denied without prejudice to a later application based on concrete costs and financial evidence.

The petition fee provision applies to either party, but formal bilaterality is not alone dispositive. Plaintiff identifies no FEHA or comparable statute that supplies an asymmetric fee rule, and this clause applies only after failure to comply with a valid arbitration demand and only to a party prevailing on the ensuing petition. (Cf. *Ramirez v. Charter Communications, Inc.* 16 Cal.5th 478, 507.) On the theories and record presented, Plaintiff has not shown that this term is substantively unconscionable. TTC has not applied for fees or costs or submitted an amount. No fees or costs are awarded on this motion. Because Plaintiff has not shown substantive unconscionability on the theories presented, the modest procedural unconscionability does not render the agreement unenforceable.

E. Stay and case management

The three predicates in Code of Civil Procedure section 1281.2, subdivision (c), are met. Plaintiff and TTC are parties to the arbitration agreement and to this action with Jane Doe, a third party to the agreement; the claims arise from the same alleged assault; and separate proceedings risk conflicting findings on the assault, notice, causation, and damages. TTC has not established the applicability of Code of Civil Procedure section 1295, so it has not established the statutory exclusion from this procedure. The Court selects the third alternative in section 1281.2: it orders arbitration among the parties who agreed to arbitrate and stays the

court action. (Cronus Investments, Inc.
v. Concierge Services (2005) 35 Cal.4th 376, 393.)

TTC moved for a stay. Once arbitration is
ordered, Code of Civil Procedure section 1281.4 requires a stay of the judicial
action as to the controversy sent to arbitration. Because the common issues
here are not severable, the required stay extends to the entire action. (Mattson Technology, Inc. v. Applied
Materials, Inc. (2023) 96 Cal.App.5th 1149, 1161; Heritage Provider Network, Inc. v. Superior Court (2008) 158
Cal.App.4th 1146, 1152-1153.)

***To submit without oral argument, all parties must follow the Department's "Submitting on a Tentative Ruling" instructions.
Only one joint email may be sent. Do not telephone the courtroom. If the parties do not unanimously agree to submit, any
party may appear at the scheduled hearing without advance notice.***